

26NWCV01903 26NWCV01903

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Case Number: 26NWCV01903 Hearing Date: September 21, 2026 Dept: C

AMEZCUA vs

LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY

CASE NO.: 26NWCV01903

HEARING: 9/21/26 @ 9:30 AM

#20

TENTATIVE ORDER

Defendant

Los Angeles County Metropolitan Transportation Authority's Demurrer is
OVERRULED in part and SUSTAINED in part as set forth below. Defendant's Motion
to Strike is GRANTED.

Moving

Party to give NOTICE.

Defendant

Los Angeles County Metropolitan Transportation Authority (Defendant) demurs to Plaintiff
Susan Amezcua's (Plaintiff) Complaint for failure to state facts sufficient to
constitute each of her seven causes of action and for uncertainty.

Background

This is a personal injury/
property damage action. Plaintiff alleges that on December 10, 2024, Plaintiff

was a passenger aboard Metro Bus #127, a bus owned or controlled by Defendant, returning from Kaiser Permanente Downey Medical Center, located at 9333 Imperial Hwy., Downey, CA 90242. (Complaint, ¶ 8.) Plaintiff was seated in her wheelchair aboard the bus.

While en route, Plaintiff informed the Bus Driver in advance that she needed to disembark at a specific, dedicated stop near the intersection of Alondra Boulevard and Stevens Avenue in Bellflower, California. Despite this clear and timely request, the Bus Driver intentionally disregarded Plaintiff's instruction and failed to stop at the designated location. Plaintiff called out to the Bus Driver, alerting her that she had missed the intended dedicated safe stop for passenger disembarkation. In response, the Bus Driver abruptly stopped the bus at a dangerous location (Complaint, ¶¶ 9-12.)

Plaintiff asked the Bus Driver to kneel the bus before she exited, a routine and required safety measure that reduces ramp incline and improves wheelchair access for disabled passengers. The Bus Driver ignored Plaintiff's reasonable and lawful safety request. The Bus Driver ignored Plaintiff's reasonable and lawful safety request. Instead, the Bus Driver dismissively and mockingly replied, "You'll be fine," and took no further steps to ensure a safe exit. She did not safely guide Plaintiff, did not assist her with the ramp, and did not inspect the slope despite knowing that Plaintiff was an elderly wheelchair user attempting to descend a steep incline. Plaintiff began descending the ramp. Due to the steep incline and unstable conditions, she lost control, was thrown from the ramp, and landed face-first on the pavement. (Complaint, ¶¶ 13-18.)

Plaintiff asserts causes of action for:

1. Negligence
2. Dangerous Condition of Public Property
3. Negligent Hiring, Supervision, or Retention
4. Violation of the Unruh Civil Rights Act
5. Violation of the California Disabled Persons Act

6. Intentional Infliction of Emotional Distress

Meet and Confer

“Before filing a demurrer

pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The Court finds the parties adequately met and conferred. (Thomas Decl.)

Legal Standard

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality

in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show¿in what manner¿plaintiff can amend the complaint, and¿how¿that

Discussion

1st CAUSE OF
ACTION – Negligence

NEGLIGENCE: The elements are: (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

Public entities such as Defendant are not liable for injury arising from negligence except as provided by statute. (Gov.Code, § 815, subd. (a).) As a general rule, common law principles of respondeat superior apply to render government entities liable for their employees' torts: Under Gov.C. § 815.2, the entity may be vicariously liable for injury proximately caused by its employee's act or omission within the scope of employment if the act or omission would otherwise have given rise to a cause of action against the employee. Two statutes define the scope of negligence liability in the context of this case.

Government Code section 815.2, subdivision (a) expressly provides: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.”

Section 820, subdivision (a) adds that, “a public employee is liable for injury caused by his act or omission to the same extent as a private person.” In other words, direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) No public employee (and thus, absent an overriding statute, no public entity) is liable for injuries resulting from discretionary acts within the scope of employment—even if that discretion is abused. (Gov.C. § 820.2; and see generally, *Barner v. Leeds* (2000) 24 Cal.4th 676, 683.) In determining whether a public employee's act is “discretionary” under Gov.C. § 820.2, courts distinguish between the employee's operational and policy decisions. Immunity is restricted to basic policy decisions that have been expressly committed to coordinate

branches of government and as to which judicial interference would be “unseemly.” (See Cuff v. Grossmont Union High School Dist. (2013) 221 Cal.App.4th 582, 594.)

Defendant argues that it is immune from liability in tort for any common law negligence cause of action. Plaintiff is barred from asserting a non-statutory general negligence cause of action against Defendant, as a public entity, pursuant to Government Code § 815.

In opposition, Plaintiff argues that Plaintiff does not rely on a freestanding common-law direct-negligence theory against Metro. Plaintiff alleges vicarious liability based on the Bus Driver’s conduct. The Complaint alleges that the Bus Driver “acted as an agent and employee of METRO, such that METRO is liable pursuant to Government Code sections 815.2 and/or 815.4.” (Compl., ¶ 7.)

As previously stated, Government Code section 815.2, subdivision (a) expressly provides: “A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.”

The Court finds that Plaintiff has plead sufficient facts as to the negligence cause of action.

Accordingly, the demurrer to the first cause of action is OVERRULED.

2nd CAUSE OF ACTION – Dangerous Condition of Public Property

A public entity may be held liable only if all of these conditions are satisfied:

The condition must be one that creates a substantial risk of injury when the property or adjacent property is used with due care in a reasonably foreseeable manner (Gov.C. § 830(a));

The
condition must have existed at the time of the injury;

The
injury must have been "proximately caused" by the condition;

The
condition must have created a "reasonably foreseeable" risk of the kind
of injury suffered; and

Either (a) the condition
must have been created by a negligent or wrongful act or omission of an
employee within the scope of his or her public employment, or (b)
the entity must have had "actual or constructive notice" of the condition
(see Gov.C. § 835.2.)

A dangerous condition is defined as a
condition "that creates a substantial (as distinguished from a minor,
trivial or insignificant) risk of injury when such property or adjacent
property is used with due care in a manner in which it is reasonably foreseeable
that it will be used." (Gov. Code, § 830, subd. (a).)

The "dangerous condition" must be a physical
condition on the property. Public
property is in a dangerous condition within the meaning of section 835 if it is
physically damaged, deteriorated, or defective in such a way as to foreseeably
endanger those using the property itself. (Cordova v. City of L.A. (2015)
61 Cal.4th 1099, 1105.) Defendant argues that Plaintiff does not allege there
was a physical defect in the wheelchair ramp so as to cause the incident.
Without a physical defect causing or contributing to the Plaintiff's injuries, Plaintiff
cannot maintain her cause of action based upon a dangerous condition of public
property.

In opposition, Plaintiff argues that
Defendant's "no physical defect" argument fails because Plaintiff alleges a
dangerous physical configuration of public property. The dangerous condition
was not merely a thought, a policy, or a conclusion. It was the way in which Metro's
wheelchair ramp was physically deployed on a sloped driveway, at a dangerously
steep angle, without kneeling the bus, for use by an elderly wheelchair-bound

passenger attempting to disembark. The danger was made worse by the driver's assurance.

The Court finds that Plaintiff has failed to allege sufficient facts to constitute this cause of action given Plaintiff fails to allege a physical defect. Plaintiff alleges "Metro Bus #127 and its associated wheelchair ramp constituted public property owned, operated, controlled, maintained, supervised, and/or managed by METRO." (Compl., ¶ 29.) Plaintiff alleges the dangerous condition included "a wheelchair ramp deployed on a dangerously sloped driveway at a non-designated, unsafe disembarkation location," "a ramp incline rendered unreasonably steep by the failure to kneel the bus prior to deployment," and "conditions unsafe for wheelchair-dependent passengers attempting to disembark without assistance." (Compl., ¶ 30.) Thus, Plaintiff does not identify a physical defect in the ramp. Instead, Plaintiff alleges that the ramp itself was deployed in an unsafe manner and location by the Bus Driver.

Accordingly, the demurrer to the second cause of action is SUSTAINED with 20 days leave to amend.

3rd and 4th

CAUSE OF ACTION – Negligent Hiring and Violation of Mandatory Duty

Direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714." (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) Here, Plaintiff attempts to impose direct liability upon Defendant for hiring and retention of the Bus Driver. However, "there is no statutory basis for declaring a governmental entity liable for negligence in its hiring and supervision practices. . . ." (de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 253.) Thus, Plaintiff fails to allege the required reference to a statute that imposes direct liability upon Defendant for negligent hiring and/or retention.

Under the fourth cause of action,

Plaintiff argues that the Complaint specifically alleges that 49 C.F.R. section 37.165(f), Government Code section 11135, the ADA, and related

disability-access laws imposed mandatory duties on Defendant to protect disabled individuals using public transportation. (Compl., ¶ 44.) C.F.R. Section 37.165 states, "[w]here necessary or upon request, the entity's personnel shall assist individuals with disabilities with the use of securement systems, ramps and lifts. If it is necessary for the personnel to leave their seats to provide this assistance, they shall do so." (49 C.F.R. § 37.165(f).)

Defendant argues the duty is not mandatory. Not so. The regulation expressly states the entity shall assist an individual upon request. The word shall imposes a mandatory duty. Moreover, as stated, Plaintiff alleges she requested assistance:

"Plaintiff asked the Bus Driver to kneel the bus before she exited, a routine and required safety measure that reduces ramp incline and improves wheelchair access for disabled passengers.

The Bus Driver ignored Plaintiff's reasonable and lawful safety request. Instead, the Bus Driver dismissively and mockingly replied, "You'll be fine," and took no further steps to ensure a safe exit."

(Complaint, ¶¶ 13-14.)

Local government entities such as Defendant are explicitly prohibited from denying equal access to accommodations to individuals that are disabled, as Plaintiff alleges to be, under both Government Code section 11135 and Title II of the ADA. Plaintiff alleges she is a physically disabled elderly woman who relies on a wheelchair for mobility and safe ambulation. (Compl., ¶ 1.)

Accordingly, the demurrer to the third cause of action is SUSTAINED without leave to amend. The demurrer to the fourth cause of action is OVERRULED.

5th CAUSE OF ACTION – Violation of the Unruh Civil Rights Act

"The Unruh Act was enacted to 'create and preserve a nondiscriminatory environment in California business establishments by "banishing" or "eradicating" arbitrary, invidious discrimination by such establishments.' " (Flowers v. Prasad (2015) 238 Cal.App.4th 930, 937; Civ. Code § 51, subd. (b).) "To state a claim under the

Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status." (Liapes v. Facebook, Inc. (2023) 95 Cal.App.5th 910, 922.)

Although not raised by Defendant, generally the Unruh Civil Rights Act does not apply to local government entities such as Defendant as they are not considered "business establishments." Government Code section 11135 and Title II of the ADA protect prevent discrimination and/or lack of accommodation against disabled individuals.

Accordingly, the demurrer to the third is
SUSTAINED with 20 days leave to amend.

6th CAUSE OF
ACTION – Violation of the California Disabled Persons Act

Under Civ. Code, § 54, individuals with disabilities or medical conditions have the same right as the general public to the full and free use of the streets, highways, sidewalks, walkways, public buildings, medical facilities, including hospitals, clinics, and physicians' offices, public facilities, and other public places.

Defendant argues that Plaintiff's complaint makes no effort to set forth with particularity her qualifying disability. Defendant also argues that Plaintiff was not denied access to the bus because she was transported on it. The mere fact that the bus operated did not "kneel" the bus is not a denial of access.

In opposition, Plaintiff contends that Defendant's argument rests on the false premise that physical boarding equals full and equal access. For a wheelchair user, the issue is not whether Plaintiff boarded the bus and a ramp was deployed; rather, the issue is whether Metro provided safe, equal, accessible use of that ramp and the transportation service.

The Court finds that Plaintiff has alleged sufficient facts to constitute this cause of action. Plaintiff alleges she "is a disabled person within the meaning of Civil Code sections 54 and 54.1."

(Compl., ¶ 62.)

Moreover, Plaintiff

alleges she is a physically disabled elderly woman who relies on a wheelchair for mobility and safe ambulation. (Compl., ¶ 1.) Reading the allegations liberally and in context, the Court finds that Plaintiff has alleged sufficient facts to demonstrate a disability under sections 54 and 54.1. Plaintiff further alleges Defendants “denied Plaintiff full and equal access to public transportation, facilities, accommodations, and services to which she was entitled as a disabled person.” (Compl., ¶ 63.) The Complaint alleges that the Bus Driver’s “refusal to kneel the bus and failure to assist Plaintiff with the wheelchair ramp violated 49 C.F.R. § 37.165(f), which constitutes a per se violation of the California Disabled Persons Act pursuant to Civil Code section 54.1(d).” (Compl., ¶ 64.) The Complaint further alleges that Defendants interfered with Plaintiff’s rights by “refusing to stop at a designated safe location upon request; deploying the ramp at an unsafe, sloped location; refusing to kneel the bus; refusing to provide required ramp assistance; and failing to render aid after Plaintiff was injured.” (Compl., ¶ 65.)

Accordingly, the demurrer to the sixth cause of action is OVERRULED.

7th CAUSE OF

ACTION - Intentional

Infliction of Emotional Distress (IIED)

The

elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.... [the conduct] must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Davidson v. City of Westminster (1982) 32 Cal.3d 197, 209.) The defendant must have engaged in “conduct intended to inflict injury or engaged in with the realization that injury will result.” (Id. at p. 210.)

Defendant argues that Plaintiff has not alleged nonconclusionary facts to state a claim under all three elements to support her cause of action. The allegations, even when read in the light most

favorable to plaintiff, do not satisfy the elements of an emotional distress claim.

In opposition, Plaintiff argues that Defendants engaged in extreme and outrageous conduct by “knowingly disregarding a wheelchair-dependent elderly passenger’s disability-related requests for accommodation, intentionally stopping the bus at a dangerous sloped location, deploying the wheelchair ramp at a dangerously steep angle, refusing to kneel the bus, dismissively responding ‘You’ll be fine’ to a legitimate and legally protected safety request, and failing to render aid after Plaintiff sustained serious injuries.” (Compl., ¶ 73.)

The Court finds that Plaintiff has alleged sufficient facts to constitute this cause of action. Plaintiff’s allegations are not “mere allegations that the plaintiffs suffered severe emotional distress,” Plaintiff provides facts indicating the nature and extent of of mental suffering incurred as a result of the defendant’s alleged outrageous conduct as required. (*Pitman v. City of Oakland* (1988) 197 Cal. App. 3d 1037, 1047.) Plaintiff alleges to have “suffered severe emotional distress, including but not limited to fear, humiliation, anxiety, trauma, psychological distress, recurring nightmares of falling, and a persistent fear of boarding buses and using public transportation.” (Compl., ¶ 76.)

Accordingly, the demurrer to the seventh cause of action is OVERRULED.

Motion to Strike

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (CCP §436.) When the defendant is a business entity, § 3294(b) requires authorization, ratification, or personal malice by an officer, director, or managing agent. Whether an individual is a “managing agent” turns on substantial discretionary authority over corporate policy, a fact question rarely resolvable on the pleadings. (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 577; *Roby v. McKesson Corp.* (2009) 47 Cal. 4th 686, 714–715.) In order to plead a prima facie claim for punitive damages, a plaintiff must plead the ultimate facts from which it can reasonably be inferred that a defendant acted with “oppression, fraud, or malice” against the plaintiff within the meaning of Civil Code § 3294. (*Coil. Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721; *Cyrus v. Haveson*

(1976) 65 Cal.App.3d 306, 316-317.)

Plaintiff's counsel agrees that punitive and treble damages are not recoverable against Defendant. (Thomas Decl.) Plaintiff states in opposition that Plaintiff does not seek Civil Code section 3294 punitive damages against Metro as a public entity, but preserves punitive damages against the individual Bus Driver who is sued as Doe 1 and will be identified through discovery. (Compl., ¶¶ 3, 79.) The Court expresses no opinion regarding the extent of the individual bus driver's liability.

Accordingly, the motion to strike is GRANTED solely as to the public entity.